

16.	26CV2005	VINCEPT SAPORITO VS. COBRA VAN LINES, LLC
ARBITRATION AWARD		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Petitioners, Vincent Saporito and Kathleen Saporito (collectively “Petitioners”), petition the Court for an order confirming the arbitrator’s award. Petitioners assert that a Contract for Arbitration Services (the “Contract”) was entered into on March 27, 2026; however, the Contract does not contain Respondent’s signature as required. Petitioner’s declaration confirms that Respondent did not sign the Contract or participate in arbitration.

The Final Arbitration Award was issued on May 11, 2026 (the “Arbitration Award”). The Arbitration award indicates that Respondent did not pay the administrative fee, submit a brief or evidence, and did not otherwise participate in the arbitration. Nevertheless, the arbitration proceeded on the timely-filed record. The Arbitration Award provides, in part, as follows:

It is hereby ordered that Respondent Cobra Van Lines, LLC shall pay \$3,900.91 to Petitioners Vincent Saporito and Kathleen Saporito within forty-five (45) days of the date of this Final Arbitration Agreement. Failure to timely pay permits Petitioners to pursue all remedies at law or equity, including entry of judgment on this Award and recovery of reasonable costs and attorney’s fees incurred in enforcement.

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award. Code Civil Procedure § 1285.

Code of Civil Procedure § 1285.4 requires that a petition shall:

- (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.
- (b) Set forth the names of the arbitrators.
- (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

The Court does not find there is a valid agreement to arbitrate, as Respondents did not enter into the agreement evidenced by the lack of signature. The Petition to Confirm Arbitration Award is denied.

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TENTATIVE RULING #16:

PETITION TO CONFIRM ARBITRATION AWARD IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.